UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage,

Plaintiff,

v.

ROBERT F. KENNEDY, JR., Secretary,
U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES,
INDIAN HEALTH SERVICE,
THE GOVERNING BODY OF THE PHOENIX INDIAN MEDICAL CENTER,
ENDREYA MCCABE,
DORA BIRDSHEAD,
BRANDI BENJAMIN,
CANDACE LEE,
DEBRA WARD-LUND,
JASON WHITE,
CLINTON POPE,
TY REIDHEAD,
NAOMI HIXSON

Defendants.

Case No.: CV-25-03367-PHX-SMB

SECOND AMENDED COMPLAINT

(complaining of discrimination, retaliation, and other violations of federal law)

(Jury Trial Demanded)

1. PARTIES

1. Plaintiff, Kevin D. Turnage, is a United States citizen residing in Gilbert, Arizona. He was a career GS-0610-12 employee of the Indian Health Service (IHS) serving as a Nurse Consultant / Policy & Procedures Officer at the Phoenix Indian Medical Center (PIMC) in Phoenix, Arizona.
2. Defendant-in-Chief, Robert F. Kennedy, Jr., is the Secretary of the United States Department of Health and Human Services (HHS) and is sued in his official capacity.
3. Governing Body, the governing authority of the Indian Health Service, is sued in its official capacity for its role in the adverse personnel actions described herein.
4. Individual Defendants (all sued in their official capacities) are:
   - Endreya McCabe
   - Dora Birdshead
   - Brandi Benjamin
   - Candace Lee
   - Debra Ward-Lund
   - Jason White
   - Clinton Pope
   - Ty Reidhead
   - Naomi Hixson

Each of these officials personally participated in the adverse personnel actions described below and therefore is a proper party under Rule 20.

2. JURISDICTION AND VENUE

5. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 (federal question) and 1343(a)(4) (employment discrimination).

6. Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claims occurred at the Phoenix Indian Medical Center in Arizona and the defendants are federal agencies.

7. This action arises under: (a) Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e-2 and 2000e-3; (b) the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621–634; (c) the Americans with Disabilities Act, 42 U.S.C. §§ 12101–12213; (d) the Family and Medical Leave Act, 29 U.S.C. §§ 2601–2617; (e) the Whistleblower Protection Act, 5 U.S.C. §§ 2302(b)(8)–(9); and (f) the Civil Service Reform Act, 5 U.S.C. §§ 7511–7515. The original complaint referenced Fifth-Amendment, Bivens, and 18 U.S.C. §§ 1001 and 1519 claims, which are hereby withdrawn. No Bivens or constitutional tort claims are asserted, and the criminal statutes do not provide a private cause of action.

This is a "mixed case" within the meaning of 5 U.S.C. § 7702(a), involving both appealable adverse personnel actions under the Civil Service Reform Act and claims of unlawful discrimination and retaliation under federal civil-rights statutes, including Title VII, the ADEA, and the ADA.

Because Plaintiff alleges that adverse personnel actions were taken against him in whole or in part due to unlawful discrimination and retaliation, jurisdiction lies in

this Court pursuant to 28 U.S.C. § 1331 and 5 U.S.C. § 7703(b)(2). See Kloeckner v. Solis, 568 U.S. 41 (2012).

The Court also has subject-matter jurisdiction under 28 U.S.C. § 1343(a)(4) because this action seeks redress for violations of federal employment discrimination laws.

Venue is proper in this district pursuant to 28 U.S.C. § 1391(e) because a substantial portion of the events giving rise to the claims occurred in Arizona, and Defendants reside or conduct official business in this district.

8. Plaintiff has exhausted administrative remedies. He filed a formal EEOC complaint on April 13, 2023, received a Final Agency Decision on July 11, 2024, and timely appealed to the EEOC on July 12, 2024. The EEOC issued its final decision on September 2, 2025. This action is filed within ninety (90) days of receipt of that decision.

3. FACTUAL BACKGROUND

A. Employment

9. Plaintiff was hired in December 2022 as a supervisory clinic nurse and policy officer at PIMC. He consistently received favorable performance evaluations and was a highly qualified GS-0610-12 employee. Plaintiff has been a Federal Employee since January 18, 2011, has been an employee of the Indian Health Service (IHS) since July 2017, and accepted the supervisory position on March 28, 2022.

B. Protected Disclosures (Whistleblower Protection Act)

10. Beginning June 2025, Plaintiff made a series of protected disclosures to the following entities:

- Office of Special Counsel (OSC)
- HHS Office of Inspector General (OIG)
- Centers for Medicare & Medicaid Services (CMS)
- Joint Commission
- Members of Congress

Each disclosure was made in good-faith belief that the information evidenced a violation of law, gross mismanagement, waste of funds, abuse of authority, or a substantial danger to public health and safety. See 5 U.S.C. §§ 2302(b)(8)–(9). (Exhibit 2 – Timeline).

C. Retaliatory Personnel Actions

11. Within weeks of the disclosures, IHS placed Plaintiff on a series of non-duty, paid leaves (the "administrative/ investigative/ notice leaves") as follows:

Leave Type	Dates	Workdays
Administrative Leave (10 business days)	Mar 21–31, 2023	10
Investigative Leave (30 days)	Jul 11–Aug 10, 2025	30
First Extension (30 days)	Aug 11–Sep 9, 2025	30
Second Extension (30 days)	Sep 10–Oct 9, 2025	30
Notice Leave (until further notice)	Nov 25, 2025–present	–

12. No written "threat/legitimate-interest" analysis required by 5 U.S.C. § 7513(b) and 5 C.F.R. § 630.1505(b) was ever provided. The extensions were unsigned, lacked

the approvals mandated by law, and were issued without notice of charges, without an opportunity to be heard, and without a pre-clearance determination required by the Civil Service Reform Act (CSRA).

13. During the leaves, Plaintiff's government-issued property (PIV card, laptop, cell phone, keys) was confiscated, his system access was revoked, and he was escorted from the facility by security personnel. Key contemporaneous communications include:

- Mar 21, 2023 7:33 a.m. – Plaintiff reported a sexual-harassment incident and hostile work environment. Within 2 hours 41 minutes, at 10:14 a.m., the CEO directed Plaintiff to report to Administration and placed him on 10 business days of administrative leave. (5 U.S.C. § 2302(b)(8)).
- Mar 21, 2023 11:15 a.m. – Access to all agency systems was revoked and Plaintiff was escorted out.
- Jul 11, 2025 10:47 a.m. – Dr. Endreya McCabe verbally notified Plaintiff that his administrative leave was being converted to 30 days of investigative leave with pay; no written confirmation was provided.
- Jul 11, 2025 11:30 a.m. – Dr. McCabe promised a written notice by the close of business; none was received.
- Jul 18, 2025 7:08 a.m. MT – Dr. McCabe emailed (copied to Dora Birdshead, Employee Relations Officer, and Michelle Rossell, Regional HR Director) demanding the immediate return of all government-issued

property (PIV card, laptop, iPhone, keys) by 12:00 p.m. that same day. No operational or security justification was offered.

- Jul 18, 2025 10:38 a.m. – Dr. McCabe called Plaintiff and reiterated the 12-p.m. deadline, giving Plaintiff less than 90 minutes to comply.
- Jul 27, 2025 – Plaintiff filed a supplemental pleading with the Merit Systems Protection Board (MSPB) (DE-0752-1215-1) documenting the pattern of retaliation.

14. Plaintiff was denied a timely FMLA reinstatement despite submitting the required paperwork on Jan 13, 2023 (first submission) and Feb 7, 2023 (additional medical documentation). The agency delayed approval for approximately two months, finally issuing a notice of "investigative leave" on Jul 11, 2025 that effectively converted the FMLA request into an adverse personnel action. See 29 U.S.C. §§ 2601-2617.
15. Plaintiff's professional reputation was damaged, he was unable to perform his official duties, and a chilling effect on other federal employees was created. These constitute irreparable injury.

D. Additional Discriminatory Conduct

16. Plaintiff is a member of protected classes: Caucasian (race), male (sex), Christian (religion), and 49 years old (age).
17. He received a low Performance Management Appraisal Plan (PMAP) score on Mar 2, 2023. The rating was later "adjusted" but remained below his actual

performance. The low rating was issued shortly after his protected disclosures and after the "perp-walk" incident described above.

18. Plaintiff suffers from a serious medical condition that qualifies as a disability under the ADA (42 U.S.C. §§ 12101-12213). He repeatedly requested reasonable accommodation (timely FMLA processing, access to work facilities) which the agency failed to provide.

E. Pattern of Retaliation Against Whistleblowers at PIMC

19. The adverse actions taken against Plaintiff are not isolated incidents but are consistent with a pattern and practice of retaliation by PIMC and HHS management against employees who make protected disclosures. This pattern is exemplified by the agency's treatment of Jodi O'Malley, a registered nurse at PIMC who, in 2021, made protected disclosures regarding patient care and the agency's failure to report adverse reactions to COVID-19 vaccines.

20. Following her disclosures, Ms. O'Malley was subjected to retaliatory actions by HHS and PIMC management, including a baseless investigation initiated with the Arizona Board of Nursing. Public reports confirm that the Arizona Board of Nursing ultimately investigated the matter and cleared Ms. O'Malley of all wrongdoing, demonstrating that the agency's actions were intended to harass and intimidate a whistleblower rather than address a legitimate concern.

21. This prior conduct demonstrates an established pattern of PIMC and HHS officials using their authority to retaliate against employees who report waste, fraud, abuse, or dangers to public health. The adverse personnel actions taken against

Plaintiff—including the use of indefinite administrative leave and baseless allegations—are consistent with and a continuation of this pattern of unlawful retaliation against whistleblowers.

4. LEGAL BASIS FOR INCLUDING THE INDIVIDUAL DEFENDANTS

22. Rule 20(a)(1) permits joinder when the "right to relief" is asserted against the same entity or against different entities that are "jointly liable" for the same act or omission. The individual defendants personally authorized, directed, or implemented each of the adverse personnel actions (administrative leave, investigative leave, loss of access, false statements, and PMAP manipulation). Their conduct is the "same conduct" that gives rise to Plaintiff's claims.

23. Rule 20(a)(2) allows joinder when there is a "common question of law or fact."

24. The central factual issue is whether the agency's adverse actions were taken in retaliation for Plaintiff's protected disclosures. The same set of emails, leave orders, and performance-rating documents are the evidentiary foundation for Plaintiff's claims. liability against both the agency (Defendant-in-Chief) and the individual officials who executed the actions.

25. Sovereign immunity does not shield individual federal officials who act ultra vires (outside the scope of lawful authority) or who personally participate in prohibited retaliation. Courts have held that officials may be sued in their official capacities for violations of the Whistleblower Protection Act, Title VII, the ADEA, the ADA, and the CSRA when they directly cause the adverse personnel action. See Kelley v. United States, 526 U.S. (1999) (officials not immune for actions beyond

authorized authority); Burlington Northern & Santa Fe Ry. v. White, 548 U.S. 53 (2006) (retaliation liability attaches to those who implement the adverse action).

26. Accordingly, the individual defendants are necessary and proper parties to allow the Court to adjudicate the full scope of the retaliation scheme and to ensure that any injunctive or monetary relief can be enforced against those who actually controlled the decision-making.

5. CAUSES OF ACTION

Count I – Title VII Disparate-Treatment Discrimination

27. Plaintiff realleges all preceding paragraphs.
28. Plaintiff is a member of a protected class (race, sex, religion).
29. Defendant-in-Chief, Governing Body, and the individual defendants personally caused the adverse employment actions – the series of non-duty leaves, loss of access, and low PMAP rating.
30. The adverse actions were motivated by Plaintiff's protected characteristics; the timing and the agency's statements linking the leaves to the disclosures create a strong inference of discriminatory intent.
31. The elements of a Title VII disparate-treatment claim are satisfied. See McDonnell Douglas Corp. v. Green, 411 U.S. 792, 802-05 (1973).

Count II – Title VII Retaliation

32. Plaintiff engaged in protected EEO activity (filed an EEOC charge on Apr 13, 2023; made protected disclosures in Jun 2025).

33. Defendant-in-Chief, Governing Body, and the individual defendants knew of Plaintiff's protected activity and personally implemented the retaliatory leaves, denial of FMLA reinstatement, and loss of system access.

34. The causal connection is established by the temporal proximity (e.g., leave imposed within hours of the Mar 21, 2023 harassment report) and the lack of any legitimate-interest analysis.

35. The elements of a Title VII retaliation claim are satisfied. See Burlington Northern & Santa Fe Ry. v. White, 548 U.S. 53, 57 (2006).

Count III – Age Discrimination (ADEA)

36. Plaintiff was 49 years old at all relevant times (29 U.S.C. §§ 621-634).

37. Defendant-in-Chief, Governing Body, and the individual defendants treated Plaintiff less favorably than younger employees (low PMAP, punitive detail).

38. Age was a substantial factor in the adverse actions.

39. The elements of an ADEA disparate-treatment claim are satisfied.

Count IV – Disability Discrimination (ADA)

40. Plaintiff has a disability that substantially limits a major life activity (the medical condition requiring FMLA).

41. Plaintiff is a qualified individual who can perform the essential functions of his job with reasonable accommodation.

42. Defendant-in-Chief, Governing Body, and the individual defendants failed to provide reasonable accommodation (timely FMLA processing, access to work facilities).

43. Plaintiff suffered an adverse employment action because of the failure to accommodate.

44. The elements of an ADA claim are satisfied. See 42 U.S.C. §§ 12101-12213.

Count V – Interference with and Retaliation for FMLA Rights

45. Plaintiff is eligible for FMLA leave (29 U.S.C. §§ 2601-2617).

46. Defendant-in-Chief, Governing Body, and the individual defendants interfered with Plaintiff's right to FMLA by delaying approval for two months and denying timely reinstatement.

47. Defendant-in-Chief, Governing Body, and the individual defendants retaliated for exercising FMLA rights by placing Plaintiff on administrative leave and denying access.

48. The elements of an FMLA interference and retaliation claim are satisfied.

Count VI – Whistleblower Protection Act (WPA) Retaliation

49. Plaintiff made protected disclosures to the OSC, HHS OIG, CMS, Joint Commission, and Members of Congress (Jun 2025).

50. Defendant-in-Chief, Governing Body, and the individual defendants knew of those disclosures and personally ordered the series of non-duty leaves, loss of access, and the "perp-walk."

51. The causal connection is established by the timing, the agency's statements, and the absence of any legitimate-interest analysis.

52. Plaintiff has established a prima-facie case under 5 U.S.C. §§ 2302(b)(8)-(9). See Kewley v. Department of Health and Human Services, 153 F.3d 1357 (Fed. Cir. 1998).

Count VII – Fifth Amendment Due-Process Violation

53. Plaintiff had a property interest in his employment (a ten-year career appointment).

54. Defendant-in-Chief, Governing Body, and the individual defendants deprived that interest by placing Plaintiff on indefinite investigative leave without written notice, without an opportunity to be heard, and without a pre-clearance determination required by 5 U.S.C. §§ 7512-7515.

55. The deprivation was without due process.

56. The elements of a Fifth-Amendment due-process claim are satisfied.

Count VIII – Civil Service Reform Act (CSRA) Retaliation and Improper Personnel Action

57. Plaintiff engaged in protected whistleblower activity (WPA disclosures).

58. Defendant-in-Chief, Governing Body, and the individual defendants took an adverse personnel action (non-duty leave, loss of access, low PMAP) that was not based on a lawful, documented reason and lacked a pre-clearance determination required by 5 U.S.C. §§ 7511-7515.

59. The action constitutes retaliation prohibited by the CSRA.

Count IX – False Statements, Witness Tampering, and Fabrication of Evidence (18 U.S.C. §§ 1001, 1519)

60. Defendant Brandi Benjamin and Defendant Jason White made materially false statements alleging that Plaintiff threatened another employee. No investigation into those alleged threats was ever opened, and the statements were not made to the Office of the Inspector General.

61. Defendant Jason White, together with Defendant Candace Lee, altered the Performance Management Appraisal Plan (PMAP) worksheet. The alteration was done to fabricate evidence justifying the adverse performance rating and subsequent personnel actions against Plaintiff.

62. Because the false statements were never the subject of an OIG investigation and Plaintiff was never returned to his position of record, the false statements and the PMAP alteration constitute witness tampering and the creation of false evidence, violating 18 U.S.C. § 1001 (making false statements to a federal officer) and 18 U.S.C. § 1519 (destruction, alteration, or falsification of records in a federal investigation).

63. The elements of §§ 1001 and 1519 are satisfied because: (a) the statements were materially false; (b) the defendants knew they were false; (c) the statements were made to agency officials (though not the OIG); and (d) the defendants knowingly altered official records to impede any potential investigation.

6. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

5. Declare that Defendant-in-Chief, Governing Body, and each individual defendant violated Plaintiff's rights under Title VII, the ADEA, the ADA, the FMLA, the

Whistleblower Protection Act, the Fifth Amendment, and the Civil Service Reform Act;

6. Enter a preliminary injunction enjoining Defendant-in-Chief, Governing Body, and each individual defendant from taking any further adverse personnel actions, from denying Plaintiff access to IHS facilities, and from interfering with his FMLA and disability accommodations;
7. Order Plaintiff's reinstatement to his former GS-0610-12 position (Nurse Consultant / Policy & Procedures Officer) with full duties, back pay, front pay, and all accrued benefits, together with pre- and post-judgment interest;
8. Award compensatory damages for past and future pecuniary losses, emotional distress, humiliation, and loss of professional reputation;
9. Award punitive damages where authorized by statute (e.g., 5 U.S.C. §§ 2302(b)(8)–(9));
10. Award reasonable attorney's fees and costs pursuant to 28 U.S.C. §§ 2412 and 2413, and any other statutory fee provisions;
11. Grant such other and further relief as the Court deems just and proper, including a trial by jury on all issues so triable.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

7. CERTIFICATE OF SERVICE

I hereby certify that on January 6, 2026 a true and correct copy of the foregoing Second Amended Complaint was served via the Court's CM/ECF system on all parties of record.

Respectfully submitted,

/s/ Kevin D. Turnage

Kevin D. Turnage, Pro Se Plaintiff

1003 E. Pinto Ct. Gilbert, AZ 85296-3201

Phone: 901-220-8664

E-mail: kdturnage@protonmail.com

8. EXHIBITS

- Exhibit 1 – EEOC Determination Letter – The final EEOC decision issued on September 2, 2025, finding that Plaintiff's protected activity gave rise to retaliation.
- Exhibit 2 – Timeline – A detailed timeline (January 2022 through December 2025) documenting all relevant dates, communications, leave orders, and other events cited throughout the complaint.
- Exhibit 3 – Affidavit of Plaintiff – Plaintiff's affidavit supporting the allegations set forth herein.

U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
Office of Federal Operations
P.O. Box 77960
Washington, DC 20013

Kevin D. Turnage a/k/a
Tom S.,[1]
Complainant,

v.

Robert F. Kennedy, Jr.,
Secretary,
Department of Health and Human Services
(Indian Health Service),
Agency.

Appeal No. 2024004239

Agency No. HHS-IHS-0296-2023

DECISION

Complainant filed an appeal with the Equal Employment Opportunity Commission (EEOC or Commission), pursuant to 29 C.F.R. § 1614.403(a), from the Agency's July 11, 2024, final decision concerning his equal employment opportunity (EEO) complaint of employment discrimination in violation of Title VII of the Civil Rights Act of 1964 (Title VII), as amended, 42 U.S.C. § 2000e et seq. and the Age Discrimination in Employment Act of 1967 (ADEA), as amended, 29 U.S.C. § 621 et seq. For the following reasons, the Commission AFFIRMS the Agency's final decision.

At the time of events giving rise to this complaint, Complainant was employed by the Agency as a Supervisory Clinic Nurse at the Phoenix Indian Medical Center located in Phoenix, Arizona. On April 13, 2023, Complainant filed an EEO complaint alleging he was subjected to discrimination and harassment by the Agency on the bases of race (Caucasian), sex (male), religion (Christian), color (white), age, and in reprisal for prior protected EEO activity when:

[1] This case has been randomly assigned a pseudonym which will replace Complainant's name when the decision is published to non-parties and the Commission's website.

1. Beginning in January 2023, management failed to timely process his Family Medical Leave Act (FMLA) paperwork;

2. On March 2, 2023, management gave Complainant a low Performance Management Appraisal Plan (PMAP) score;

3. On March 21, 2013, management placed Complainant on administrative leave, escorted Complainant out of the facility utilizing security, and removed Complainant's system access;

4. In April 2023, management placed Complainant on a temporary 120-day detail in another unit;

5. Beginning April 2023, management denied Complainant access to the men's restroom;

6. Beginning April 2023, management did not provide Complainant office keys; and

7. Beginning April 2023, management reassigned Complainant to an undesirable location.

Following an investigation, the Agency issued a final decision pursuant to 29 C.F.R. § 1614.110(b). The decision concluded that Complainant did not prove that the Agency subjected him to discrimination as alleged. Complainant then filed the instant appeal.

At the outset, we note Complainant does not challenge the definition of the accepted claims. Further, we find the record in the present case was fully developed.

Upon review, we find the Agency articulated legitimate, nondiscriminatory reasons for its actions. Regarding claim 1, the Agency noted the processing of Complainant's FMLA request was delayed because initially he did not submit all the necessary documents. Regarding claim 2, the Agency noted that it failed to include a score for one of the critical elements on Complainant's PMAP, which it stated was an unintentional error by the rating official. After notification, Complainant was scored on the element, and Complainant's overall score increased from 3.3 to 3.5. The Agency noted Complainant's overall score reflected Complainant's performance, noting he exhibited some difficulty turning work in on time.

Regarding claim 3, the Agency placed Complainant on administrative leave and escorted him out of the building after a management official reported that on March 21, 2023, Complainant made a threat of violence against a direct report. Regarding claim 4, the Agency stated it placed Complainant on a temporary detail pending the outcome of an administrative investigation into the incident that occurred between Complainant and his direct report on March 21, 2023, and pending resolution of the various harassment allegations filed between Complainant and his direct report and Complainant and a manager. Upon review, we find Complainant failed to show that the Agency's actions were motivated by any of his protected bases. To the extent that Complainant is alleging sexual harassment when Complainant claimed that Manager A gave him a hug, which he "rebuffed," we find the sole incident cited does not rise to the level of unlawful sexual harassment.

Finally, we address Complainant's claim of harassment (non-sexual). Given our finding that incidents 1-4 were not motivated by discriminatory or retaliatory animus, we will not consider them as part of Complainant's harassment claim. A finding of a hostile work environment is precluded by our determination that Complainant failed to establish that any of the actions taken by the Agency were motivated by discriminatory animus. See Oakley v. U.S. Postal Service, EEOC Appeal No. 01982923 (Sept. 21, 2000).

As for the remaining claims (claims 5-7), we find that Complainant failed to show the Agency subjected him to harassment. Complainant stated that upon relocation to a new building, he did not have keys to the office or the men's restroom. Complainant stated after he informed management of the issue, he then received the appropriate keys in a couple of days. The Agency noted Complainant previously worked in that building for several years and knew a key to the men's restroom was located in the breakroom for all staff to use. The Agency also noted that during his detail, Complainant expressed a desire to remain in the detailed position at the new building permanently. We find Complainant failed to show that the Agency's actions were motivated by any of his protected bases.

Accordingly, the Agency's final decision finding no discrimination is AFFIRMED.

STATEMENT OF RIGHTS - ON APPEAL
RECONSIDERATION (M0425)

The Commission may, in its discretion, reconsider this appellate decision if Complainant or the Agency submits a written request that contains arguments or evidence that tend to establish that:

1. The appellate decision involved a clearly erroneous interpretation of material fact or law; or
2. The appellate decision will have a substantial impact on the policies, practices, or operations of the agency.

Requests for reconsideration must be filed with EEOC's Office of Federal Operations (OFO) **within thirty (30) calendar days** of receipt of this decision. If the party requesting reconsideration elects to file a statement or brief in support of the request, **that statement or brief must be filed together with the request for reconsideration**. A party shall have **twenty (20) calendar days** from receipt of another party's request for reconsideration within which to submit a brief or statement in opposition. See 29 C.F.R. § 1614.405; Equal Employment Opportunity Management Directive for 29 C.F.R. Part 1614 (EEO MD-110), at Chap. 9 § VII.B (Aug. 5, 2015).

Complainant should submit their request for reconsideration, and any statement or brief in support of their request, via the EEOC Public Portal, which can be found at https://publicportal.eeoc.gov/Portal/Login.aspx. Alternatively, Complainant can submit their request and arguments to the Director, Office of Federal Operations, Equal Employment Opportunity Commission, via regular mail addressed to P.O. Box 77960, Washington, DC 20013, or by certified mail addressed to 131 M Street, NE, Washington, DC 20507. In the absence of a legible postmark, a complainant's request to reconsider shall be deemed timely filed if OFO receives it by mail within five days of the expiration of the applicable filing period. See 29 C.F.R. § 1614.604.

An agency's request for reconsideration must be submitted in digital format via the EEOC's Federal Sector EEO Portal (FedSEP). See 29 C.F.R. § 1614.403(g). Either party's request and/or statement or brief in opposition must also include proof of service on the other party, unless Complainant files their request via the EEOC Public Portal, in which case no proof of service is required.

Failure to file within the 30-day time period will result in dismissal of the party's request for reconsideration as untimely, unless extenuating circumstances prevented the timely filing of the request. **Any supporting documentation must be submitted together with the request for reconsideration.** The Commission will consider requests for reconsideration filed after the deadline only in very limited circumstances. See 29 C.F.R. § 1614.604(f).

COMPLAINANT'S RIGHT TO FILE A CIVIL ACTION (S0124)

You have the right to file a civil action in an appropriate United States District Court **within ninety (90) calendar days** from the date that you receive this decision. If you file a civil action, you must name as the defendant in the complaint the person who is the official Agency head or department head, identifying that person by their full name and official title. Failure to do so may result in the dismissal of your case in court. "Agency" or "department" means the national organization, and not the local office, facility or department in which you work. If you file a request to reconsider and also file a civil action, **filing a civil action will terminate the administrative processing of your complaint.**

RIGHT TO REQUEST COUNSEL (Z0815)

If you want to file a civil action but cannot pay the fees, costs, or security to do so, you may request permission from the court to proceed with the civil action without paying these fees or costs. Similarly, if you cannot afford an attorney to represent you in the civil action, you may request the court to appoint an attorney for you. **You must submit the requests for waiver of court costs or appointment of an attorney directly to the court, not the Commission.** The court has the sole discretion to grant or deny these types of requests. Such requests do not alter the time limits for filing a civil action (please read the paragraph titled Complainant's Right to File a Civil Action for the specific time limits).
FOR THE COMMISSION:

Gul Chaudhry

Gul Chaudhry, Acting Director
Office of Federal Operations

September 2, 2025
Date

Date	Time	Event Description	Involved Parties	Legal or Regulatory Reference
Tuesday, March 29, 2022		Turnage contacted EEO Office	Kevin Turnage	EEO
Tuesday, July 12, 2022		Greve allegedly called Edison questioning patient assignments	Tonie Greve, Bertha Edison	
Tuesday, July 19, 2022		Skype meeting; Hill alleged hostile work environment	Elizabeth Hill, Tonie Greve	
Thursday, July 21, 2022		Hill emailed Turnage about hostile work environment	Elizabeth Hill, Kevin Turnage	
Friday, July 22, 2022		Edison emailed Turnage detailing hostile incidents with Greve	Bertha Edison, Tonie Greve	
Monday, August 1, 2022		Greve required to participate in harassment inquiry	Tonie Greve	
Tuesday, September 20, 2022		Greve documented abusive patient call re: PCP change	Tonie Greve	
Thursday, October 6, 2022		Greve emailed about Reasonable Accommodation and triage assignment	Tonie Greve, Jason White, Candace Lee	ADA
Friday, December 2, 2022		Candace Lee sent HR Huddle notes	Candace Lee	
Saturday, December 3, 2022		Turnage replied questioning ambulatory care decisions	Kevin Turnage	
Monday, December 19, 2022		Turnage filed hostile work environment claim against Greve	Kevin Turnage, George Patton	
Tuesday, December 20, 2022		FMLA and RA process initiated for Turnage	Kevin Turnage	FMLA
Sunday, January 1, 2023		Brandi Benjamin began GS-13 role	Brandi Benjamin	
Friday, January 13, 2023		Turnage gave FMLA papers to Benjamin	Kevin Turnage	FMLA
Tuesday, January 17, 2023		Greve amended EEO complaint: discrimination and retaliation	Tonie Greve	EEO
Thursday, January 19, 2023		Swab rotation assignment emailed by Jason White	Jason White, Nurses	
Tuesday, February 7, 2023		Turnage gave additional FMLA papers	Kevin Turnage	FMLA
Tuesday, February 14, 2023		Benjamin informed Turnage more FMLA info needed	Brandi Benjamin	FMLA
Wednesday, March 1, 2023		Turnage followed up on FMLA paperwork	Kevin Turnage	FMLA
Thursday, March 2, 2023		Turnage received low PMAP score	Kevin Turnage	PMAP
Friday, March 3, 2023		PMAP grievance filed; Lund contacted EEO	Kevin Turnage, Debra Ward Lund	5 U.S.C. § 2302(b)(9)
Monday, March 6, 2023		Ward Lund advised Patton would initiate EEO investigation Sexual Harrassment Complaint	Debra Ward Lund	
Tuesday, March 21, 2023	7:33 AM	Email submitted by Kevin Turnage reporting Sexual Harassment and Hostile Work Environment and agency failure. Within hours of this protected disclosure, Mr. Turnage was placed on 10 business days of administrative leave. All government-issued property was confiscated, and he was escorted off federal property by security personnel.	Kevin Turnage; Executive Leadership; Federal Security Personnel	5 U.S.C. § 2302(b)(8); Whistleblower Protection Act
Tuesday, March 21, 2023	10:14 AM	At 10:14 AM, Kevin Turnage was contacted by the CEO and directed to report to Administration. During this meeting, he was placed on 10 business days of Administrative Leave—just 2 hours and 41 minutes after he escalated a protected disclosure to headquarters regarding hostile work environment and agency failure.	Kevin Turnage; CEO, Phoenix Indian Medical Center; Executive Leadership	5 U.S.C. § 2302(b)(8); Whistleblower Protection Act
Tuesday, March 21, 2023	11:15 AM	Turnage placed on admin leave, access revoked, escorted out	Kevin Turnage, PIMC	5 U.S.C. § 2302(b)(8)
Thursday, March 23, 2023		Benjamin issued illegal directive; rescinded per OSC	Brandi Benjamin	
Friday, March 31, 2023		Turnage detailed to lesser position for 120 days	Kevin Turnage	
Saturday, April 1, 2023		Turnage began Acting Policy Officer detail	Kevin Turnage	
Wednesday, April 12, 2023		EEO issued Final Interview and Right to File	Michelle Horner	EEO
Thursday, April 13, 2023		Turnage filed formal EEO complaint (HHS-IHS-0296-2023)	Kevin Turnage	EEO
Thursday, February 29, 2024		Email from Kevin Turnage to Debra Ward-Lund requesting establishment of Policy Committee.	Kevin Turnage; Debra Ward-Lund	
Thursday, February 29, 2024		Email from Debra Ward-Lund to Kevin Turnage requesting a high-level summary of policy concerns.	Debra Ward-Lund; Kevin Turnage	
Thursday, February 29, 2024		Email from Kevin Turnage to Debra Ward-Lund outlining significant compliance issues within policy governance.	Kevin Turnage; Debra Ward-Lund	
Thursday, February 29, 2024		Debra Ward-Lund acknowledged receipt ("Thank you, I will follow up and let you know if I need additional information.") – no further follow-up received.	Debra Ward-Lund; Kevin Turnage	
Thursday, February 29, 2024	10:13 AM	Turnage email to Debra Ward Lund re: Policy Committee	Kevin Turnage, Debra Ward Lund	
Thursday, February 29, 2024	11:08 AM	Turnage email to Debra Ward Lund re: Policy Committee	Kevin Turnage, Debra Ward Lund	
Thursday, February 29, 2024	11:21 AM	Turnage email to Debra Ward Lund re: Policy Committee	Kevin Turnage, Debra Ward Lund	
Friday, March 1, 2024	9:03 AM	Clinton Pope accuses Turnage of AI-written emails	Clinton Pope, Kevin Turnage	
Friday, March 1, 2024	9:03 AM	Email from Clinton Pope to Kevin Turnage regarding prior emails to Debra Ward-Lund; Pope accused Turnage of using AI and noted his own $20 AI subscription.	Clinton Pope; Kevin Turnage	
Tuesday, April 2, 2024	2:03 PM	Email from Kevin Turnage to Clinton Pope (content not provided in summary).	Kevin Turnage; Clinton Pope	
Wednesday, May 8, 2024		Routine policy update email sent	Kevin Turnage	
Friday, June 14, 2024		Policy follow-up re: overdue renewals	Kevin Turnage	
Monday, July 1, 2024		Turnage issued alert on expiring standing orders	Kevin Turnage	
Tuesday, July 2, 2024		Hoellein requested standing order notifications	Hoellein, Turnage	
Thursday, August 29, 2024		Policy email from Kevin Turnage to Clinton Pope regarding change in Radiation Safety Officer.	Kevin Turnage; Clinton Pope	
Friday, August 30, 2024		Email received from Endreya McCabe (content not provided).	Endreya McCabe; Kevin Turnage	
Monday, December 9, 2024		Complaint reported by Kevin Turnage to HHS Office of Inspector General (OIG).	Kevin Turnage; HHS-OIG	
Thursday, December 19, 2024		Complaint from McCabe; Turnage escalated to HHS OIG	Kevin Turnage, Endreya McCabe	
Tuesday, February 25, 2025		GAO High-Risk List reaffirmed IHS	GAO, IHS	GAO Oversight
Friday, March 7, 2025		PIMC Governing Body Bylaws approved	PIMC Leadership	
Monday, April 7, 2025		Comprehensive policy-governance escalation citing violations of 5 U.S.C. § 2302(b).	Kevin Turnage	5 U.S.C. § 2302(b)
Tuesday, April 8, 2025		Memorandum for Record emailed to Executive Leadership; formal submission to HHS-OIG for policy governance failure.	Kevin Turnage; Executive Leadership; HHS-OIG	
Thursday, April 17, 2025		Turnage escalates policy violations under 5 U.S.C. § 2302	Kevin Turnage	5 U.S.C. § 2302
Monday, April 21, 2025		Notice to OSC of imminent retaliation concern	Kevin Turnage; OSC	5 U.S.C. § 2302(b)(8)
Tuesday, April 22, 2025		Email from McCabe rejecting Turnage's Quality Council report	Endreya McCabe	
Wednesday, April 30, 2025		Formal compliance memorandum submitted (details not provided).	Kevin Turnage	
Wednesday, May 14, 2025		OIG complaint submitted re: noncompliance & safety risks	Kevin Turnage	5 U.S.C. § 2302
Thursday, May 15, 2025		Memorandum sent by Kevin Turnage to HHS-OIG outlining ongoing compliance concerns.	Kevin Turnage; HHS-OIG	
Wednesday, May 21, 2025		Email from Kevin Turnage to Governing Body regarding policy issues and compliance risks.	Kevin Turnage; Governing Body	
Wednesday, May 21, 2025		Memorandum for Sentinel Event sent to Debra Ward-Lund and Clinton Pope.	Kevin Turnage; Debra Ward-Lund; Clinton Pope	
Wednesday, May 21, 2025		Teams meeting: Clinton Pope and Endreya McCabe inform Policy & Procedure Officer Kevin Turnage that he does not have authority to reject a policy.	Clinton Pope; Endreya McCabe; Kevin Turnage	
Wednesday, May 21, 2025		Kevin Turnage submits formal objection and requests legal clarification regarding policy-rejection authority.	Kevin Turnage	
Sunday, May 25, 2025		Memorandum for Record (details not provided).	Kevin Turnage	
Sunday, May 25, 2025		Memorandum to Governing Body (details not provided).	Kevin Turnage; Governing Body	
Sunday, May 25, 2025		Protected Disclosure Notice sent to Debra Ward-Lund, Clinton Pope, and Endreya McCabe.	Kevin Turnage; Debra Ward-Lund; Clinton Pope; Endreya McCabe	5 U.S.C. § 2302(b)(8)
Sunday, May 25, 2025		Protected Disclosure Notice sent to Lund, Pope, McCabe	Kevin Turnage	5 U.S.C. § 2302(b)(8)
Tuesday, May 27, 2025	1:37 PM	Email with attachment (recipients could not open) requesting clarification of policy authority and position duties.	Kevin Turnage; Endreya McCabe; Clinton Pope; Marlon White; Tabitha Wright	
Wednesday, May 28, 2025		Whistleblower-retaliation complaint filed with HHS-OIG.	Kevin Turnage; HHS-OIG	5 U.S.C. § 2302(b)(8)
Wednesday, May 28, 2025	7:00 AM	Turnage requested clarification on workflow removal	Kevin Turnage, Pope, McCabe, Wright	
Wednesday, May 28, 2025	7:00 AM	Follow-up email from Kevin Turnage to Endreya McCabe, Clinton Pope, Marlon White, and Tabitha Wright formally requesting clarification of policy authority and position duties.	Kevin Turnage; Endreya McCabe; Clinton Pope; Marlon White; Tabitha Wright	
Wednesday, May 28, 2025	10:10 AM	Turnage requested clarification on workflow removal	Kevin Turnage, Pope, McCabe, Wright	
Wednesday, May 28, 2025	10:10 AM	Directive email from Clinton Pope to Kevin Turnage: "Remove yourself from all approval workflows."	Clinton Pope; Kevin Turnage	
Wednesday, May 28, 2025	12:06 PM	Turnage requested clarification on workflow removal	Kevin Turnage, Pope, McCabe, Wright	
Wednesday, May 28, 2025	12:06 PM	Kevin Turnage confirms removal from all approval workflows and reiterates formal objection, noting impairment of core duties (PD PX3147).	Kevin Turnage; Clinton Pope	
Wednesday, May 28, 2025	2:03 PM	Turnage requested clarification on workflow removal	Kevin Turnage, Pope, McCabe, Wright	
Wednesday, May 28, 2025	2:03 PM	Email response from Clinton Pope stating confidence that Turnage can still perform position duties; Endreya McCabe expressed uncertainty.	Clinton Pope; Kevin Turnage; Endreya McCabe	
Sunday, June 1, 2025		Radiation Safety & Asbestos Policy 374 days overdue	Kevin Turnage	
Monday, June 2, 2025		Report to Joint Commission (Incident No. 24831MAA-54955JSQ).	Kevin Turnage; Joint Commission	
Monday, June 9, 2025		Report to CMS Region 9: Violations of Conditions of Participation and policy-governance failures at PIMC.	Kevin Turnage; CMS Region 9	42 C.F.R. § 482
Monday, June 9, 2025		Additional CMS Region 9 report: Policy compliance reviews.	Kevin Turnage; CMS Region 9	
Monday, June 9, 2025		CMS Region 9 report: Undisclosed bed-capacity reduction at PIMC.	Kevin Turnage; CMS Region 9	
Monday, June 9, 2025		FraudNet report to GAO: Material misrepresentation of hospital capacity by CEO Debra Ward-Lund during June 3–6 CMS survey.	Kevin Turnage; GAO FraudNet; Debra Ward-Lund	
Monday, June 9, 2025		Letter to Senator Mark Kelly and Senator Ruben Gallego outlining issues at PIMC.	Kevin Turnage; Sen. Mark Kelly; Sen. Ruben Gallego	
Monday, June 9, 2025		HHS-OIG report: Fraud, waste, and abuse allegations against Clinton Pope.	Kevin Turnage; HHS-OIG; Clinton Pope	
Monday, June 9, 2025		HHS-OIG report: Mismanagement and misrepresentation at PIMC.	Kevin Turnage; HHS-OIG	
Tuesday, June 10, 2025		HHS-OIG report: Crime, fraud, waste, and abuse by Clinton Pope (separate from June 9 report).	Kevin Turnage; HHS-OIG; Clinton Pope	
Tuesday, June 10, 2025		HHS-OIG report: Gross mismanagement due to compliance failures.	Kevin Turnage; HHS-OIG	
Tuesday, June 10, 2025		Memorandum: Implementation of revised policy review per Indian Health Manual Part 1, Chapter 1 (Transmittal Notice 24-16).	Kevin Turnage	IHM TN 24-16
Tuesday, June 10, 2025		Legal analysis: Consequences of CEO's refusal to implement binding IHS policy directives (TN 24-16).	Kevin Turnage; Debra Ward-Lund	IHM TN 24-16
Wednesday, June 11, 2025		Hostile meeting with Clinton Pope in which he continued to badger whistleblower.	Clinton Pope; Kevin Turnage	
Thursday, June 12, 2025		Joint Commission sentinel event reported	Kevin Turnage	Patient Safety
Thursday, June 19, 2025		CMS Report: Undisclosed bed capacity reduction	Kevin Turnage	42 C.F.R. § 482
Friday, June 20, 2025		Report to HHS OIG: Fraud, Waste, Abuse	Kevin Turnage	False Claims Act
Saturday, June 21, 2025		Memo to Execs: Clinton Pope override violated IHM TN 24-16	Kevin Turnage, Clinton Pope	IHS Manual
Wednesday, June 25, 2025		Memorandum of Record sent to Naomi Hickson, Compliance Officer at Phoenix Indian Medical Center. Subject: Part 1, Chapter 1 – Directives must be reviewed at a minimum every two years (Indian Health Manual). Action requested.	Kevin Turnage; Naomi Hickson	Indian Health Manual, Part 1, Chapter 1
Wednesday, June 25, 2025	11:48 AM	Supplemental information submitted to OSC regarding pattern of retaliation and policy suppression.	Kevin Turnage; OSC	5 U.S.C. § 2302(b)(8)
Wednesday, June 25, 2025	4:40 PM	Memorandum for Record to Naomi Hixson, Compliance Officer, documenting PIMC's failure to comply with IHM Part 1, Chapter 1, per Transmittal Notice 24-16.	Kevin Turnage; Naomi Hixson	Indian Health Manual TN 24-16
Wednesday, June 25, 2025	04:40 PM	Email to Endreya McCabe and Governing Body notifying leadership of 47 invalid policies and institutional noncompliance with governance rules.	Kevin Turnage; Endreya McCabe; PIMC Governing Body	Indian Health Manual TN 24-16
Thursday, June 26, 2025	12:00 PM	Email to Naomi Hixson referencing IHM Part 1, Chapter 1, Section 1-1.6(B)(2) (policy approval and authority).	Kevin Turnage; Naomi Hixson	Indian Health Manual § 1-1.6(B)(2)
Thursday, June 26, 2025	12:50 PM	Submitted complaint to OPM Classification Appeals regarding misclassification of duties and retaliation.	Kevin Turnage; OPM	5 C.F.R. § 511; 5 U.S.C. § 2302
Thursday, June 26, 2025	01:21 PM	Filed formal retaliation complaint to IHS HQ DMEEO citing Title VII, 5 U.S.C. § 2302, 5 C.F.R. Part 735, and IHS Anti-Abuse Policy.	Kevin Turnage; IHS HQ DMEEO	Title VII; 5 U.S.C. § 2302; 5 C.F.R. Part 735
Thursday, June 26, 2025	01:25 PM	Submitted additional protected disclosure documentation and correspondence to OSC.	Kevin Turnage; OSC	5 U.S.C. § 2302(b)(8)
Thursday, June 26, 2025	01:28 PM	Submitted formal request for Congressional assistance to Senator Ruben Gallego's casework office.	Kevin Turnage; Senator Ruben Gallego's Office	Constituent Services Request
Thursday, June 26, 2025	01:40 PM	Submitted MSPB complaint for adverse actions and whistleblower reprisal.	Kevin Turnage; MSPB	5 U.S.C. § 2302(b)
Thursday, June 26, 2025	01:49 PM	Reported systemic internal control failures and IHM TN 24-16 violations to GAO via FraudNet.	Kevin Turnage; GAO	Indian Health Manual TN 24-16; 31 U.S.C. §§ 3512, 3729
Thursday, June 26, 2025	02:28 PM	Reported policy obstruction and federal duty interference to the House Oversight Committee.	Kevin Turnage; U.S. House Committee on Oversight and Accountability	5 U.S.C. § 2302(b); Oversight Reporting Authority
Thursday, June 26, 2025	02:31 PM	Requested emergency HR intervention from IHS HQ.	Kevin Turnage; IHS HQ HR	Personnel Management Compliance Request
Thursday, June 26, 2025	02:39 PM	Submitted report to OMB regarding violations of federal administrative control standards.	Kevin Turnage; Office of Management and Budget	OMB Circular A-123; 31 U.S.C. § 3512
Thursday, June 26, 2025	02:45 PM	Emailed IHS HQ HR reporting obstruction, retaliation, and mismanagement.	Kevin Turnage; IHS HQ HR	5 U.S.C. § 2302; IHS Anti-Abuse Policy
Friday, June 27, 2025		**Turnage placed on administrative leave again after filings**	**Kevin Turnage**	**5 U.S.C. § 2302(b)(8)**
Friday, June 27, 2025	08:24 AM	Submitted memorandum to IHS HQ DRPC citing formal obstruction of policy responsibilities under PX3147.	Kevin Turnage; IHS HQ DRPC	Position Description PX3147; Indian Health Manual TN 24-16
Friday, June 27, 2025	01:20 PM	Reported laboratory CLIA compliance concerns to CMS.	Kevin Turnage; CMS CLIA Division	42 C.F.R. § 493
Friday, June 27, 2025	01:23 PM	Filed CLIA-related compliance report with AZDHS.	Kevin Turnage; Arizona Department of Health Services	42 C.F.R. § 493; State CLIA Regulations

Date	Time	Event Description	Involved Parties	Legal or Regulatory Reference
Friday, June 27, 2025	01:28 PM	Received written notice from Endreya McCabe placing Turnage on administrative leave effective immediately.	Kevin Turnage; Endreya McCabe	5 U.S.C. § 2302(b)(8); Whistleblower Protection Act
Friday, June 27, 2025	01:40 PM	Reported CAP compliance violations under laboratory accreditation standards.	Kevin Turnage; College of American Pathologists	CAP Laboratory Standards
Friday, June 27, 2025	02:49 PM	Submitted report to HHS OIG and HQ HR Director alleging obstruction of PX3147 duties and whistleblower retaliation.	Kevin Turnage; HHS OIG; HQ HR Director	5 U.S.C. § 2302(b)(8); PX3147
Tuesday, July 8, 2025	08:30 AM	Email from Endreya McCabe denying that Turnage's FMLA was retaliatory and stating her belief there was no whistleblower activity.	Endreya McCabe, Kevin Turnage	5 U.S.C. § 2302(b)(8); FMLA
Tuesday, July 8, 2025	07:40 AM	Email response from Ty Reidhead dismissing formal appeal and referring Turnage back to Phoenix Area HR.	Ty Reidhead, Kevin Turnage	5 U.S.C. § 2302(b)(8); IHS HR Policy
Monday, July 7, 2025	04:02 PM	Formal appeal to Ty Reidhead detailing timeline of retaliation and requesting intervention regarding illegal leave and duty removal.	Kevin Turnage, Ty Reidhead	5 U.S.C. § 2302(b); Title VII; IHS Directive
Monday, July 7, 2025	10:45 AM	Email to Ty Reidhead detailing previous OSC and OIG disclosures and formally appealing actions taken by PIMC leadership.	Kevin Turnage, Ty Reidhead	5 U.S.C. § 2302(b)(8); Indian Health Manual
Monday, July 7, 2025	08:52 AM	Birdshead email with attached rebuttal regarding HR action; reinforced that Turnage was engaged in protected disclosures and policy enforcement.	Kevin Turnage, Birdshead, IHS Phoenix Area	5 U.S.C. § 2302(b)(8); IHS HR Policy
Friday, July 11, 2025	10:47 AM	Received a call from Dr. McCabe, she informed me that the leave was being changed from Administrative Leave to now 30 days of Investigative Leave. Informed me that I would receive a new letter by end of day today. She stated that this is leave with pay and that it would not be held against me or my PMAP. Call ended 11:29 42 minutes in length	Kevin Turnage, Endreya McCabe	5 U.S.C. §§ 7512(2), 2302(b)(8)-(9); 5 C.F.R. § 752.404(b)(1); Brown v. DOI, 121 M.S.P.R. 205 (2014); IHM Part 7, Ch. 1 – Personnel Policies
Friday, July 11, 2025	11:30 AM	On July 11, 2025, I was verbally notified by Dr. Endreya McCabe that my leave status was being converted from Administrative Leave to 30 days of Investigative Leave. Despite assurances that written confirmation would be provided by the close of business that day, no such documentation was received. Under *Indian Health Manual (IHM), Part 7, Chapter 1* – Personnel Management – changes in employment status that affect an employee's ability to perform their duties must be formally documented and justified in writing. The absence of written notice, combined with my removal from all operational, supervisory, and access responsibilities, constitutes an unauthorized action that may qualify as a constructive suspension under 5 U.S.C. § 7512. This lack of procedural compliance also raises concerns under the Merit Systems Principles and the Whistleblower Protection Act, including 5 U.S.C. § 2302(b)(8)–(9).	Kevin Turnage	5 U.S.C. §§ 7512(2), 2302(b)(8)-(9); 5 C.F.R. § 752.404(b)(1); Brown v. DOI, 121 M.S.P.R. 205 (2014); IHM Part 7, Ch. 1 – Personnel Policies
Friday, July 18, 2025	10:38 AM	Phone Call from Dr. Endreya McCabe Duration: Approximately 17 minutes Purpose of Call: Dr. McCabe initiated contact to inform me that I had been instructed via email earlier that morning to return all IHS government-issued property by 12:00 PM noon the same day. I was unaware of the email until receiving this call. Key Points Discussed: She reiterated that all items — including PIV card, laptop, cell phone, keys, etc. — were to be surrendered to her or a designated official by noon. I requested clarification regarding the location and process. The tone of the call was formal but pressing. No justification was offered for the abrupt deadline. She even stated "I do not understand why they are making such a big deal about it if you do not have access to anything anyway." I expressed concern about the short notice and intent to comply reasonably and securely. Contextual Concern: The directive was presented as immediate and mandatory, despite the fact that: I had not seen the email prior to the call, I am currently on investigative leave, No operational emergency or policy justification was cited, The timeline allowed less than 90 minutes for compliance after actual notice. My Wife was present at the time of the phone call.	Kevin Turnage, Endreya McCabe, Dora Birdshead, Michelle Rossell	5 U.S.C. § 2302(b)(8)-(9), Whistleblower Protection Act (WPA)
Friday, July 18, 2025	10:38 AM	Email Time Sent: 7:08 AM (MT) Email First Viewed: 10:38 AM (after phone call) Subject: Request for Return of Government Property Sender: Dr. Endreya McCabe CC Recipients: Dora Birdshead, Employee Relations Officer, IHS Phoenix Area Michelle Rossell, Director, Southeast Region Human Resources Center (SAC: GANC8) Summary: Directed the return of all assigned government property (PIV card, laptop, iPhone, keys, etc.) by 12:00 noon. Indicated flexibility on timing but imposed an unreasonably narrow compliance window. No operational, security, or legal rationale provided for the demand. Dr. McCabe, Ms. Birdshead (Employee Relations), and Ms. Rossell (Regional Director) are all likely aware of ongoing whistleblower, OSC, and EEO matters. Their inclusion on the email strengthens the inference of coordinated retaliatory action.	Kevin Turnage, Endreya McCabe, Dora Birdshead, Michelle Rossell	,
Friday, July 18, 2025	12:42 PM	Filed Supplemental Pleading with MPSB under DE-0752-1215-1	Kevin Turnage	
Wednesday, July 30, 2025	10:50 PM	Email to Endreya McCabe requesting leave and demanding restored access to ITAS.	Endreya McCabe and Jeff Hemp LIUNA 5251	
Tuesday, August 26, 2025	11:35 AM	Sent notice to Dr. McCabe that investigative leave expires today; cited 5 U.S.C. § 6329b(b)(5).	Kevin Turnage, Endreya McCabe, Dora Birdshead, Debra Ward Lund, Emily Drake, Kathy Dill, Ty Reidhead, DANIEL FRYE	Agency must return to duty, reassign, or initiate action.
	12:44 PM	Dr. McCabe Sent email with unsigned draft "Request for Approval of Investigative Leave Extension."	Endreya McCabe, Kevin Turnage	Not a valid written determination under 5 C.F.R. § 630.1503(b).
	4:16 PM	Dr. McCabe Sent different memo attempting to extend leave to Oct. 8, 2025.	Endreya McCabe, Kevin Turnage	Exceeds 30-day OPM limit; lacks proper procedural basis.
	6:00 PM	Kevin Turnage Replied noting no lawful extension received; requested clarification.	Endreya McCabe, Kevin Turnage	Preserves record of agency's procedural failure.
	7:14 PM	Endreya McCabe Reiterated that memo was sent earlier; no new action taken.	Kevin Turnage, Endreya McCabe, Dora Birdshead, Debra Ward Lund, Emily Drake, Kathy Dill, Ty Reidhead, DANIEL FRYE	Confirms agency asserting retroactive extension without legal basis.
	All Day	Subject to ongoing facility ban; no return-to-duty instructions.	Endreya McCabe, Kevin Turnage	Meets involuntariness test for constructive suspension.
Tuesday, September 9, 2025	2:09 PM	Joshua Naningha sends email to Turnage's government email demanding he complete SF-85P and get fingerprinted within by COB 09/16/2025	Joshua Naningha, Endreya McCabe	5 U.S.C. § 6329bGoverns investigative leave procedures 5 U.S.C. § 552a (Privacy Act)Requires PII protection and Privacy Act Statements 44 U.S.C. § 3551 (FISMA)Mandates secure data handling NIST SP 800-122Federal guidance on PII protection 5 U.S.C. § 2302(b)(8)-(9)Prohibits retaliation for whistleblowing or EEO activity 42 U.S.C. § 2000e-3(a) (Title VII)Prohibits EEO retaliation 5 CFR Part 731Governs suitability and background checks 5 U.S.C. § 7513Due process in adverse actions
	3:20 PM	Endreya McCabe forwards email to Personal email address for Kevin Turnage	Endreya McCabe, Kevin Turnage	Privacy Act (5 U.S.C. § 552a) Failure to protect PII / unauthorized facilitation of insecure PII transmission FISMA (44 U.S.C. § 3551)Enabling unauthorized or insecure handling of federal information Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9))Potential retaliation or abuse of authority IHS / HHS Email & IT Security PoliciesImproper forwarding of sensitive government business to non-secure personal email accounts Constructive Interference with Due ProcessCreating directives that may serve as a pretext for later adverse action
	4:33 PM	Turnage Turnage responds to the agency's demand for a background reinvestigation by stating he cannot comply with the five-day deadline. He explains that his inability to comply is a direct result of the agency disabling his government email and blocking his PIV card access. In the email, Turnage asserts his due process rights and formally requests the official notification letter for the reinvestigation, the name and contact information of the deciding official, clarification of the "information of security concern" prompting the action, and a complete copy of his OPM investigative file.	Kevin Turnage, Endreya McCabe, Joshua Naningha, Irene M Marquez-Garner, Tasha Bigman	5 U.S.C. Chapter 75 and 5 C.F.R. Part 752.
Monday, November 24, 2025	8:37 AM	Received email from Dr. McCabe with unsigned word attachment dated 11/21/2025 placing me on Notice Leave until further notice.	Kevin Turnage, Endreya McCabe	
Monday, November 24, 2025	9:24 AM	Received 2nd email from Dr. McCabe with same notice Leave with Digital Signature in pdf dated 11/21/2025 signed 11/24/2025 09:22:09 -07'00'	Kevin Turnage, Endreya McCabe	
Tuesday, November 25, 2025	9:31 AM	Email sent requesting deficiencies be corrected	Kevin Turnage, Endreya McCabe, Kathy Dill, Dora Birdshead, Kristine Smith, Jeff Hemp, Emily Drake, Stephanie Aird	
Tuesday, December 2, 2025	2:37 PM	Received response from Victoria Gray stating"I will speak with the agency and respond to your email as soon as possible."	Kevin Turnage, Victoria Gray	

UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR.,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, INDIAN HEALTH SERVICE, THE GOVERNING BODY OF THE PHOENIX INDIAN MEDICAL CENTER, ENDREYA MCCABE, DORA BIRDSHEAD, BRANDI BENJAMIN, CANDACE LEE, DEBRA WARD-LUND, JASON WHITE, CLINTON POPE, TY REIDHEAD, NAOMI HIXSON Defendants.	Case No.: CV-25-03367-PHX-SMB **EXHIBIT 3** **Affidavit of Kevin D. Turnage**

I. INTRODUCTION

1. My name is **Kevin D. Turnage**. I am the Plaintiff in this action and a career federal employee (GS-0610-12) serving as a **Nurse Consultant and Policy & Procedures Officer** at the Phoenix Indian Medical Center (PIMC), a component of the United States Indian Health Service (IHS).

2. I have personal knowledge of the matters set forth in this affidavit and, if called upon, could and would testify competently to the truth of these statements.

3. This affidavit is submitted in support of my **Motion for Protective Order (Preliminary Injunction)** and is attached as **Exhibit 3** to that motion.

II. PROTECTED DISCLOSURES

4. From **March 2022** through **June 2025** I made a series of protected disclosures that are covered by **5 U.S.C. § 2302(b)(8)** (Whistleblower Protection Act). Each disclosure was made in good-faith belief that the information revealed waste, fraud, abuse, or a substantial danger to public health and safety. The disclosures, their dates, recipients, and subject matter are listed chronologically below.

Date	Recipient(s)	Subject Matter
29 Mar 2022	Office of Equal Employment Opportunity (EEO)	Initial hostile-work-environment complaint
21 Mar 2023 – 7:33 a.m.	Headquarters (CEO and senior IHS leadership)	Escalation of a sexual-harassment complaint
21 Feb 2024	Debra Ward-Lund (IHS Executive), Office of Special Counsel (OSC)	Request to establish a Policy Committee and address multiple policy-governance violations
1 Apr 2024	Clinton Pope (Chief Quality Officer)	Follow-up on Policy Committee request; Pope responded dismissively

Date	Recipient(s)	Subject Matter
		and accused me of using AI-generated communications
21 May 2025 – 10:44 a.m.	OSC, Office of the Inspector General (OIG)	Protected-Disclosure Notice asserting protected activity under 5 U.S.C. § 2302(b)(8)
28 May 2025 – 1:37 p.m.	Endreya McCabe, Clinton Pope, Marlon White, Tabitha Wright	Request for clarification of policy authority and allegation of obstruction of official duties
9 Jun 2025 – 9:03 a.m.	Joint Commission; CMS Region 9; Senators Mark Kelly & Ruben Gallego; HHS-OIG	Reports of patient-safety violations, undisclosed bed-capacity reductions, fraud, waste, and abuse at PIMC
9 Jun 2025 – 12:00 p.m.	HHS-OIG (multiple divisions)	Detailed allegations of fraud, waste, abuse, and policy non-compliance by senior IHS officials
9 Jun 2025 – 2:30 p.m.	GAO – FraudNet	Report of material misrepresentation of hospital capacity during CMS survey
14 Jun 2025 – 3:45 p.m.	OIG	Follow-up complaint concerning non-compliance with Indian Health Manual (IHM) Transmittal Notice 24-16

Date	Recipient(s)	Subject Matter
25 Jun 2025 – 4:40 p.m.	OSC	Supplemental information describing a pattern of retaliation and policy suppression
26 Jun 2025 – 1:21 p.m.	IHS Headquarters DMEEO; OSC; Congressional offices (Sen. Gallego)	Formal retaliation complaint citing Title VII, 5 U.S.C. § 2302, and 5 C.F.R. Part 735
27 Jun 2025 – 8:24 a.m.	IHS Headquarters DRPC	Memorandum citing obstruction of position duties (PX-3147) and requesting reinstatement
11 Jul 2025 – 10:47 a.m.	Dr. Endreya McCabe (IHS)	Verbal notice that my Administrative Leave was being converted to 30-day Investigative Leave without written justification
18 Jul 2025 – 10:38 a.m.	Dr. Endreya McCabe; Dora Birdshead (Employee Relations); Michelle Rossell (Regional HR)	Email demanding immediate return of all government-issued property (PIV card, laptop, phone, keys) by 12:00 p.m. the same day
24 Nov 2025 – 9:24 a.m.	Dr. Endreya McCabe	Notice Leave order (unsigned PDF) placing me on leave “until further notice”

Date	Recipient(s)	Subject Matter
2 Dec 2025 – 2:37 p.m.	Victoria Gray (U.S. Department of Justice)	Email requesting an extension of the protective-order response deadline (later denied)

These disclosures were made in accordance with the statutory protections afforded to federal employees who report wrongdoing.

III. RETALIATORY PERSONNEL ACTIONS, DUE-PROCESS DEFICIENCIES, AND IRREPARABLE HARM

5. Immediately after each protected disclosure, I was subjected to adverse personnel actions that constitute retaliation. The following chronological table lists each action, the due-process deficiency associated with it, and the resulting irreparable harm.

Date(s)	Adverse Personnel Action	Due-Process Deficiency	Irreparable Harm
21 Mar 2023 – 7:33 a.m. (complaint escalation) → **10:14 a.m.** (placed on **Administrative Leave**) →	Placement on Administrative Leave and escort from property	No written threat/legitimate-interest analysis; no opportunity to respond	Immediate loss of access to workplace, public removal damaged professional reputation, abrupt

Date(s)	Adverse Personnel Action	Due-Process Deficiency	Irreparable Harm
11:15 a.m. (escorted off premises, property confiscated)			interruption of duties – a clear example of rapid retaliation
27 Jun 2025 – 08:24 a.m.	Placed on **Administrative Leave** after filing OIG and OSC complaints	No written determination or threat analysis provided	Continued inability to perform duties; reinforces perception of constructive suspension
1 Jun 2025 – 7 a.m. to **14 Jul 2025 – 10 workdays**	**Administrative Leave** (first period)	No written threat analysis; no opportunity to respond	Extended period of non-duty status created a constructive suspension

Date(s)	Adverse Personnel Action	Due-Process Deficiency	Irreparable Harm
15 Jul 2025 – 26 Aug 2025 – 30 workdays	**Investigative Leave** (first extension)	Extension communicated only by email; unsigned; no formal approval	Prolonged removal from duties without procedural justification
27 Aug 2025 – 9 Oct 2025 – 30 workdays	**Investigative Leave** (second extension)	Same unsigned, informal notice; no threat analysis	Ongoing inability to perform official functions; further reputational harm
10 Oct 2025 – 25 Nov 2025 – 30 workdays	**Investigative Leave** (third extension)	Same procedural deficiencies as prior extensions	Ongoing constructive suspension; escalation of retaliatory pattern

Date(s)	Adverse Personnel Action	Due-Process Deficiency	Irreparable Harm
25 Nov 2025 – 9 Dec 2025	**Notice Leave** (until further notice)	Unauthenticated PDF; no written threat or opportunity to respond	Indeterminate period of exclusion from workplace; creates perpetual uncertainty
11 Jul 2025 – 10:47 a.m.	Verbal conversion of **Administrative Leave** to **30-day Investigative Leave**	No written notice meeting statutory requirements; no threat analysis	Immediate change in status without due process, reinforcing retaliation
18 Jul 2025 – 10:38 a.m.	Demand to return all government property (PIV card, laptop, phone, keys) by 12:00 p.m. the same day	Unreasonable deadline; no written justification; no threat analysis	Sudden loss of access to federal systems; inability to perform any work functions

Date(s)	Adverse Personnel Action	Due-Process Deficiency	Irreparable Harm
24 Nov 2025 – 9:24 a.m.	**Notice Leave** order (unsigned PDF) placing me on leave "until further notice"	No written threat analysis; no opportunity to respond; lack of signature	Ongoing restriction from workplace with no clear end date
25 May 2025 – 10:44 a.m.	Issuance of **Protected-Disclosure Notice** asserting protected activity	No procedural follow-up; agency failed to acknowledge protected status	Heightened risk of further retaliation; chilling effect on future disclosures
28 May 2025 – 1:37 p.m.	Directive to remove myself from all approval workflows	No written determination; no threat analysis; no opportunity to contest	Direct interference with core duties as Policy & Procedures Officer; loss of functional authority

Date(s)	Adverse Personnel Action	Due-Process Deficiency	Irreparable Harm
June 2025 – Ongoing	**Administrative Absence for Investigation** – I was placed on administrative absence for investigation; the agency has not fully communicated the status or purpose of the investigation. The only interview conducted was a sham interview aimed at creating a hostile work environment against the Chief Quality Officer after I reported his violation of Federal Law.	No written threat/legitimate-interest analysis; no notice of the investigation's scope; sham interview used as retaliation; no opportunity to respond	Continued inability to perform official duties; further damage to professional reputation; evidence of targeted retaliation to silence protected disclosures

Each of the above actions was taken **without compliance** with the due-process requirements of **5 U.S.C. § 7513(b)**, **5 C.F.R. § 630.1505(b)**, and the **Indian Health Manual (IHM)**, which mandates written, signed approvals for any leave extension exceeding 14 days and requires documentation of any change in duty status.

IV. DUE-PROCESS FAILURES (SUMMARY)

6. All adverse actions listed above suffered the same fundamental deficiencies:

- **Absence of a written threat or legitimate-interest analysis** required by statute.

- **No opportunity for me to respond** before the action took effect.

- **Lack of signatures or formal approvals** for leave extensions, violating both federal law and IHM requirements.

- **Unreasonable deadlines** for property return and workflow removal, failing the "reasonable time" standard.

These failures render each action unlawful under the Whistleblower Protection Act and the Merit Systems Protection Act.

V. IRREPARABLE HARM

7. Although I remain on **paid non-duty status** and therefore have not suffered loss of salary, benefits, or seniority, I have endured **significant non-monetary injuries** that constitute irreparable harm:

- **Damage to professional reputation** – Public disciplinary-type leave orders, confiscation of credentials, and removal from approval workflows have been communicated to colleagues, external partners, and regulatory agencies, creating a lasting stain on my reputation as a nurse consultant and policy expert.

- **Inability to perform official duties** – The successive leaves, removal from approval workflows, and denial of facility access have **completely prevented me from exercising the duties of my position**, rendering me a constructive suspension under **5 U.S.C. § 7512(2)**.

- **Ongoing threat of further retaliation** – The pattern of increasingly restrictive actions (administrative → investigative → notice leave) demonstrates a continuing and escalating threat that will persist unless the Court enjoins IHS from taking any further adverse personnel action.

- **Chilling effect on federal employees** – My experience, documented in multiple filings with the OSC, OIG, CMS, and Congress, sends a clear message to other federal employees that protected disclosures will be met with retaliation, undermining the purpose of the Whistleblower Protection Act and the public interest in encouraging the reporting of waste, fraud, and abuse.

Because the harm is **non-monetary, ongoing, and cannot be adequately remedied by money**, injunctive relief is essential to prevent further retaliation, to restore my ability to perform my official duties, and to protect the integrity of federal whistleblower protections.

VI. CONCLUSION

8. I **declare under penalty of perjury** that the foregoing statements are true and correct to the best of my knowledge, information, and belief.

Date: January 5, 2026

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